

TENTATIVE RULING

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

It appears the proof of service for this motion was rejected by the clerk as it reflected a future service date. The court has no proof that this motion has been served by counsel on his client.

REINA MAGALLON v. GUILLERMO FONSECA **Case No. CU24-00413**

Motion to Enforce Settlement Agreement Pursuant to Code of Civil Procedure section 664.4.

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Plaintiff's motion to enforce the settlement agreement is GRANTED.

The parties agreed that Defendant would refinance the property in order to remove Plaintiff from the loan and Defendant would pay \$52,000 to Plaintiff. Defendant's exhibits demonstrate that Defendant attempted to assume the loan in his own name, but did not qualify due to his loan to debt ratio and the uncertainty of the payout to the second owner. (Letter from Edge Home Finance.) However, that uncertainty was actually not an issue as the parties had already agreed to a payout sum. The suggestion that Plaintiff accept a loan instead of a payout was a material change to the terms of the settlement agreement. Defendant does not otherwise show evidence of any effort to separately refinance by qualifying for an independent, unrelated mortgage.

Defendant attaches paperwork that includes a demand to renegotiate the settlement agreement. However, the parties had already negotiated a second option in the event Defendant was not able to refinance the loan: sale of the property. The parties agreed that the expenses of the sale would be taken from escrow and divided equally and in the event the parties did not reach an agreement on division of proceeds, the proceeds would be divided equally "50/50."

The property shall be sold in accordance with the previously negotiated settlement agreement.

In the next 15 calendar days, the parties shall meet and confer to select a mutually acceptable real estate broker to facilitate the sale of the property and cooperate in signing all necessary documents for the transaction. If the parties cannot agree on a broker, they will each submit the names of two independent brokers to the court, include information related to compensation and experience of each proposed broker, and notify the judicial assistant for Department 8 of the submission, and the court will select a broker. No broker can be affiliated with either party, i.e. no family or friends or individuals you have previously worked with.

Should any party fail to execute necessary documents, the other party may file an ex parte application for a shortened hearing. The court will assume control of the property and appoint an elisor.

Defendant shall take immediate steps to ensure the real property is suitable for viewing by potential buyers and make appropriate plans to relocate no later than 90 days from this court order.

If Defendant is able to qualify for purchase of the property at fair market value, Defendant may choose to purchase the property but must prequalify to do so in 15 calendar days. Defendant will be treated like any other bona fide purchaser for value.

Moving party is entitled to attorneys' fees which may be claimed by noticed motion.

SANDRA JACKSON and TOSH JACKSON v. JONATHAN CINEAS and JOSEPH CINEAS

Case No. CU25-09801

Demurrer

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Defendants JONATHAN CINEAS and JOSEPH CINEAS demur to Plaintiffs SANDRA JACKSON and TOSH JACKSON's complaint alleging wrongful death. Plaintiffs' complaint alleges that on December 24, 2024 Defendants negligently operated their motor vehicle and so caused Decedent's death.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].)

Analysis. A complaint is sufficient if it acquaints the defendant with the nature and extent of the plaintiff's claim. A complaint may allege ultimate facts rather than all supporting evidentiary facts. Plaintiffs allege they have standing to pursue this wrongful death action because they are Decedent's parents. (Complaint at ¶ 7.) This is sufficient pleading of ultimate facts to apprise Defendants of the nature of Plaintiffs' claims. *Nelson v. County of Los Angeles* (2003) 113 Cal.App.4th 783, 789 (*Nelson*) is not to the contrary. It correctly states that a wrongful death plaintiff must plead and